

Multiple Choice (10 marks)

1. Dworkin contends that to every legal question there is only one right answer. Which proposition below is most inconsistent with this claim?
 - (a) In hard cases judges generally decide cases on the basis of rights.
 - (b) The rights of the parties feature in the determination of most cases before the courts.
 - (c) Judges exercise strong discretion.
 - (d) Judges seek the best 'fit' with constitutional and institutional history.
2. Which one of the following doctrines is not associated with Natural Law thinking
 - (a) Doctrine of substituted security
 - (b) Doctrine of due process
 - (c) Doctrine of bias
 - (d) Doctrine of reasonableness
3. Which statement below best represents Durkheim's view of the function of punishment?
 - (a) Deterrence.
 - (b) Rehabilitation.
 - (c) Vengeance.
 - (d) Desert.
4. Which statement below is the least likely to follow logically from Savigny's notion of a Volksgeist?
 - (a) A society's law is a reflection of its culture.
 - (b) Law is like language.
 - (c) Law is the deliberate expression of a sovereign's will.
 - (d) Law is an integral element of the social fabric.
5. Robert Nozick's proposes the formula $r \times H$ as a guide to determine the appropriate punishment. What does it mean?
 - (a) Effectiveness of rehabilitation of multiplied by hazard to the community.
 - (b) Extent of responsibility multiplied by actual harm done.
 - (c) Risk of violence multiplied by degree of humility of offender.
 - (d) Recidivism multiplied by defendant's history.

True / False (10 marks)

Answer True or False

6. True or False: Kelsen's Grundnorm is a presupposition that aids in understanding the structure of a legal system.
7. True or False: Standard-setting in human rights diplomacy means establishing binding legal standards that must be followed by all states.
8. True or False: Morality plays no role in the concept of law, as legal principles are entirely separate from ethical considerations.
9. True or False: The UN Human Rights Council operates as a treaty-based human rights mechanism focused on monitoring state compliance with human rights treaties.
10. True or False: All States enjoy equal jurisdiction over crimes committed on board any vessel, regardless of its flag.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the role of treaties as sources of international law according to Article 38 of the ICJ Statute, emphasizing the criteria for their binding nature on parties in disputes.
12. Discuss the rationale behind the exhaustion of local remedies in international human rights law, highlighting its implications for local courts and international tribunals.

End of Paper